

Court No. - 39

Case :- WRIT - C No. - 1774 of 2019

Petitioner :- Chaturi Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kuber Singh Yadav

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri Rajesh Yadav, counsel holding brief of Sri Kuber Singh Yadav, learned counsel for the petitioner, Sri Ravi Anand Agrawal, learned counsel for the respondent no.2 and the learned Standing Counsel for Respondents no. 1, 3 and 4.

The petitioner in the writ petition is seeking quashing of the recovery certificate dated 15.12.2018 whereby the recovery of Rs. 1,13,149/- is sought to be recovered from the petitioner towards electricity dues.

The allegations against the petitioner is that during inspection, he was found using electricity unauthorizedly. The petitioner has a remedy under Clause 6.8 of the Electricity Supply Code, 2005 by approaching the respondent no.2-Executive Engineer, Purvanchal Vidhyut Vitran Nigam Limited, Mau. Learned counsel for the petitioner submits that the petitioner has already submitted his representation dated 13.07.2018 before the respondent no.2-Executive Engineer, Purvanchal Vidhyut Vitran Nigam Limited, Mau, copy of which has been filed as Annexure no.3 to the writ petition.

No useful purpose would be served in keeping this writ petition pending.

This writ petition is disposed of with a direction that if the petitioner appears before the respondent no. 2-Executive Engineer, Purvanchal Vidhyut Vitran Nigam Limited, Mau on 31.1.2019 at 11 a.m. personally with the certified copy of this order alongwith his representation dated 13.07.2018 (Annexure no.3 to the writ petition), the respondent no. 2 shall provide an opportunity of hearing to the petitioner and decide the representation of the petitioner in accordance with law within a further period of fifteen days.

Subject to the petitioner complying with the direction given hereinabove, the recovery in pursuance of the impugned recovery certificate dated 15.12.2018 shall remain in abeyance

and shall be subject to any final order which may be passed by the respondent no.2.

It is made clear that the court has not adjudicated the claim of the petitioner on merit.

Order Date :- 21.1.2019

JK Yadav